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|     |                                                     | <p>The case management conference is VACATED.</p> <p>The court sets a status conference regarding the arbitration for January 22, 2027 in Department C28 at 9:00 a.m. Five days before the status conference the parties are ordered to submit a joint statement concerning the arbitration.</p> <p>Defendant shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 63. | <p>Catena v. Wade-Northern</p> <p>2025-01504829</p> | <p>Defendants Rose Wade-Northern and Patrick Northern's motion for stay is DENIED. (See <i>Avant! Corp. v. Superior Court</i> (2000) 79 Cal.App.4th 876, 886-889 (<i>Avant</i>) [factors]; <i>People ex rel. Harris v. Rizzo</i> (2013) 214 Cal.App.4th 921, 952.)</p> <p>Defendants fail to identify a single Penal Code section in their moving papers under which they may face potential criminal liability until their reply brief, where they identify Penal Code section 278.5 as the source of their potential exposure. Penal Code section 278.5 sets forth the crime of child custody deprivation. (See Pen. Code, § 278.5; see also <i>People v. Jo</i> (2017) 15 Cal.App.5th 1128, 1152-1159 [elements].)</p> <p>That said, defendants present no evidence that a criminal proceeding has been filed against defendants or that such a proceeding is forthcoming, likely, or even probable. (See Rodriguez Decl., in passim.) Indeed, there is no indication that a criminal investigation of defendants has taken place to date (see <i>ibid.</i>), despite the fact that plaintiff's ex-wife allegedly abducted L.C. well over a year ago in January 2025, plaintiff reported the abduction to the Orange County District Attorney's (DA) Child Abduction Unit in February 2025, and plaintiff has been working with law enforcement and other authorities to locate his daughter since January 2025 and continuously to this day. (See FAC ¶¶ 22-23, 26; Catena Decl. ¶¶ 6-8, 18, 23-24, Ex. I.)</p> <p>At the same time, there is also no end in sight as to defendants' claim of potential criminal exposure. L.C. is still very young (see Catena Decl. at Exs. A, U) and plaintiff's ex-wife has continued to conceal and detain her with defendants' alleged continued assistance for well over a year now, despite court orders requiring the ex-wife to return the child to plaintiff and the fact that plaintiff has had sole legal custody of L.C. since at least March 2025. (See <i>id.</i> ¶¶ 5, 18-25, Ex. A.)</p> <p>Further, the requested blanket stay would thwart plaintiff's ability to use civil discovery directed at others to aide in his claims.</p> <p>While it is true that defendants' Fifth Amendment rights are theoretically implicated in this case, given the lack of any</p> |

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